

25VEUD02342 25VEUD02342

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-07

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Case Number: 25VEUD02342 Hearing Date: July 7, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

WARNER CENTER SUMMIT LTD, LP DBA SUMMIT AT WARNER CENTER,

Plaintiff,

vs.

VALERIE
ADAMS,

Defendant.

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CASE NO.: 25VEUD02342

ORDER

DENYING DEFENDANT'S MOTION TO VACATE JUDGMENT AND ATTORNEY'S FEES

I.

BACKGROUND

Plaintiff Warner Center

Summit LTD, LP dba Summit at Warner Center ("Plaintiff") filed this unlawful detainer action against Defendant Valerie Adams ("Defendant") for premises located at 6073 Frangrans Way Woodland Hills, CA 91367.

Defendant moves to

vacate judgment and order granting attorney's fees.

II.

PROCEDURAL

HISTORY

On September

9, 2025, Plaintiff filed a Complaint for unlawful detainer.

On September

15, 2025, Defendant filed an Answer.

On January 6,
2026, the Court entered judgment against Defendant for past rent due in the
amount of \$2,271.00 and holdover damages \$11,822.08 for a total of \$14,093.08.

On January
15, 2026, Plaintiff filed a Writ of Possession.

On February
19, 2026, the Court denied Defendant's Motion to Set Aside/Vacate Judgment and
to Seal Unlawful Detainer Case Record.

On February
23, 2026, Defendant filed a Notice of Appeal as to the February 19, 2026,
Order.

On May 13,
2026, the Court granted in part Plaintiff's Attorney's Fees Motion.

On May 18,
2026, Defendant filed the instant Motion to Vacate Judgement and Attorney's
Fees.

On June 11,
2026, Plaintiff filed an Opposition.

As of July 6,
2026, no reply has been filed.

III. LEGAL STANDARD

A. Lack of Actual Notice - Code of Civil Procedure § 473.5

Code of Civil
Procedure § 473.5[1] permits the Court to vacate a default when
service of a summons has not resulted in actual notice to a party in time to
defend the action and a default or default judgment has been entered against

him. (See Code Civ. Proc. § 473.5(a).) “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service... of a written notice that the default or default judgment has been entered.” (Id.)

The phrase

actual notice means genuine knowledge and does not include constructive or imputed notice to the client. (See *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.) “A defendant seeking vacation of a default judgment entered against him must further show that his lack of actual notice in time to defend the action was not caused by his inexcusable neglect or avoidance of service.” (Id. at 1077-1078, citing Code Civ. Proc. § 473.5(c).) Additionally, “the party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc. § 473.5(b).)

Moreover, it

is well established that the court is “not required to accept...self-serving evidence contradicting the process server’s declaration.” (*Rodriguez v. Nam Min Cho* (2015) 236 Cal.App.4th 742, 751.)

IV.

ANALYSIS

Defendant

requests relief pursuant to Code of Civil Procedure § 437.5 on grounds she did not receive actual notice of the Plaintiff’s Motion for Attorney Fees or hearing in time to appear and defend. (See Mot. at 1:4-6, 1:15-17.) Defendant argues she was not aware the April 10, 2026, Order vacating the ruling granting Plaintiff’s Motion for Attorney Fees and rescheduling the hearing on this motion in this Court on May 13, 2026, meant that her appearance was required on that date. Defendant further contends this matter involves identify theft. (See id., at 2:11-13.)

The Motion

will be denied. As an initial matter, although Defendant’s Motion states “to vacate the judgement and attorney’s fees order,” it appears Defendant specifically requests relief only as to the May 13, 2026, Order granting in part Plaintiff’s Motion for Attorneys’ Fees, not the order entering judgment in

favor of Plaintiff. Moreover, Defendant has already appealed the Court's February 19, 2026, Order denying her motion to vacate judgment. (See Code Civ. Proc. § 916(a) ["the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order."].) Whether a matter is embraced in or affected by a judgment or order within the meaning of § 916 depends on whether the post-judgment or post-order proceedings on the matter would have any effect on the effectiveness of the appeal. (See *Varian Medical Systems, Inc. v. Delfino*, (2005) 35 Cal. 4th 180, 189.) If it affects the effectiveness of the appeal, the proceeding is stayed; if not, the proceeding is permitted. (See *id.*) Thus, to the extent Defendant's Motion seeks to vacate the judgment entered on January 6, 2026, the Court may not proceed on that request as it concerns the same order as Defendant's appeal.

Second, Defendant

moves under § 473.5, however this section is applicable to relief from default and default judgment. (See Code Civ. Proc. § 473.5; *Fidelity Creditor Service, Inc. v. Browne* (2001) 89 Cal.App.4th 195, 203.) Thus, this section does not provide a basis for Defendant's requested relief.

Finally, as

Plaintiff points out, Defendant received service of Plaintiff's Motion for Attorney Fees on January 30, 2026, and did not oppose the Motion. (See Motion for Attorneys Fees, POS at 18.) Defendant offers no evidence she did not receive notice of this Motion. Defendant also acknowledges the April 10, 2026, Order continued the hearing on the Motion for Attorneys' Fees to May 13, 2026. However, Plaintiff still did not file an opposition to the Motion and does not deny she had a duty to respond. Accordingly, relief from the May 13, 2026, Order would likewise not be available pursuant to § 473(b) on grounds of Defendant's mistake. (See Code Civ. Proc. § 473(b) [discretionary relief is available in connection with any order]; *Lieberman v. Aetna Ins. Co.* (1967) 249 Cal.App.2d 515, 523-524 [relief under CCP § 473(b) is proper where defendant was mistaken as to some fact material to the defendant's duty to respond, by reason of which defendant failed to make a timely response.].) In addition, her appearance at the hearing on the Motion was not required. Her absence had no bearing on the Court's ultimate decision on it except to the extent that by not appearing, she effectively waived her ability to present

oral argument in opposition to the motion.

Based on the
foregoing reasons, the Court DENIES Defendant's Motion to Vacate.

V.

CONCLUSION

Based on the
foregoing, the Court DENIES Defendant's Motion to Vacate.

IT
IS SO ORDERED.

DATED: July 7, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.